

ALITO, J., dissenting

to hear that this law also forbids discrimination on the basis of “transgender status” or “gender identity,” terms that would have left people at the time scratching their heads. The term “transgender” is said to have been coined “‘in the early 1970s,’”²⁸ and the term “gender identity,” now understood to mean “[a]n internal sense of being male, female or something else,”²⁹ apparently first appeared in an academic article in 1964.³⁰ Certainly, neither term was in common parlance; indeed, dictionaries of the time still primarily defined the word “gender” by reference to grammatical classifications. See, *e. g.*, American Heritage Dictionary, at 548 (def. 1(a)) (“Any set of two or more categories, such as masculine, feminine, and neuter, into which words are divided . . . and that determine agreement with or the selection of modifiers, referents, or grammatical forms”).

While it is likely true that there have always been individuals who experience what is now termed “gender dysphoria,” *i. e.*, “[d]iscomfort or distress related to an incongruence between an individual’s gender identity and the gender assigned at birth,”³¹ the current understanding of the concept

²⁸ Drescher, Transsexualism, Gender Identity Disorder and the DSM, 14 J. Gay & Lesbian Mental Health 109, 110 (2010).

²⁹ American Psychological Association, 49 Monitor on Psychology, at 32.

³⁰ Green, Robert Stoller’s *Sex and Gender: 40 Years On*, 39 Archives Sexual Behav. 1457 (2010); see Stoller, A Contribution to the Study of Gender Identity, 45 Int’l J. Psychoanalysis 220 (1964). The term appears to have been coined a year or two earlier. See Haig, The Inexorable Rise of Gender and the Decline of Sex: Social Change in Academic Titles, 1945–2001, 33 Archives Sexual Behav. 87, 93 (2004) (suggesting the term was first introduced at 23rd International Psycho-Analytical Congress in Stockholm in 1963); J. Meyerowitz, How Sex Changed 213 (2002) (referring to founding of “Gender Identity Research Clinic” at UCLA in 1962). In his book, *Sex and Gender*, published in 1968, Robert Stoller referred to “*gender identity*” as “a working term” “associated with” his research team but noted that they were not “fixed either on copyrighting the term or on defending the concept as one of the splendors of the scientific world.” *Sex and Gender*, p. viii.

³¹ American Psychological Association, 49 Monitor on Psychology, at 32.